

Tulasi v. State of U.P.

Allahabad High Court · Division Bench · 4 August 2022 · Writ-C No. 22151 of 2022 · **Writ disposed; liberty to file clause 6.8 objection with stay of coercive recovery.**

HEADNOTE

Without examining merits, the Allahabad High Court disposed of a writ challenging a recovery citation by granting liberty to file an objection under clause 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, directing the distribution licensee to decide it after hearing within a further four weeks, and staying coercive action for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

The petitioner, Tulasi, sought certiorari to quash a recovery citation dated 14 September 2021 issued by respondent no. 3, and mandamus restraining coercive measures pursuant to that citation. Counsel for the Power Distribution Corporation stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period. The Court heard counsel for the petitioner, the State, and the distribution licensee.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

clause-6.8-objection-alternate-remedy

HOLDING

A writ challenging a recovery citation is disposed of without opinion on merits by granting liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks; if so submitted, the licensee shall decide it in accordance with law after reasonable opportunity of hearing, preferably within the next four weeks, and no coercive action shall be taken on the demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The writ against the recovery citation was not decided on merits; the consumer was relegated to the clause 6.8 objection before the distribution licensee. ¶ 1

para-6.8-objection-alternate-remedy Liberty was granted to file a Para 6.8 objection within four weeks, with a direction to decide it after hearing and an interim stay of coercive recovery. ¶ 1

assessment-6.8-alternate-remedy The impugned demand/recovery citation was left to be examined in the statutory 6.8 objection rather than in writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CITATION DATED 14.9.2021 AND THE UNDERLYING DEMAND

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1